

Body Corporate Liability Application Form



Your duty of disclosure

You must tell us all information you know (or could reasonably be expected to know) which would influence the judgement of a prudent underwriter whether or not to accept your application, and if it is accepted, on what terms and at what cost.

Examples of information you may need to disclose include:

- ▶ anything that increases the risk of an insurance claim;
- ▶ any criminal convictions in the last 7 years or where imprisoned;
- ▶ if another insurer has cancelled or refused to renew insurance, or has imposed special terms;
- ▶ any loss or damage to a home, contents or vehicle in the last 5 years.

Examples of information you do not need to disclose include:

- ▶ anything that reduces the risk of an insurance claim;
- ▶ anything we say you do not need to tell us about;
- ▶ anything that is common knowledge;
- ▶ anything you have already told us, or that we should be expected to know in the ordinary course of our business.

These examples are a guide only. Please ask if you are not sure whether you need to tell us about something. All information will be treated confidentially.

1. Applicant details

1.1 Name of the Body Corporate: _____

1.2 Strata plan number: _____

1.3 Physical address: _____

1.4 Postal address: _____

1.5 Date the Body Corporate was established? _____

1.6 Nature of Body Corporate and number of units

Nature of Body Corporate		Number of units
Residential	☐	
Commercial	☐	
Industrial	☐	
Other (specify)	☐	
Total		

1.7 Market Value of Building/s \$ _____

1.8 Total annual Body Corporate fees \$ _____

1.9 Is the Body Corporate currently able to meet its debts as they fall due? Yes ☐ No ☐

If 'no', please provide full details: _____

1.10 Does the Body Corporate committee use a professional manager? Yes ☐ No ☐

If 'yes', please give full details: _____

2. Body Corporate details

2.1 Has the Body Corporate:

- (a) investigated or is it considering investigating any water penetration, systemic, structural or fire issues? Yes ☐ No ☐
- (b) undertaken or is it planning to undertake any repair work or has any such work been completed previously? Yes ☐ No ☐
- (c) imposed any levies for repairs? Yes ☐ No ☐

If you answered 'yes' to any part of questions above, please provide full details: _____

2.2 Does the Body Corporate insure the building in accordance with the Unit Titles Act 2022? Yes ☐ No ☐

3. Claims details

3.1 Does any committee member of the Body Corporate have a claim pending under a Body Corporate Officers (or similar) policy or would have had a claim pending if such a policy had been in place? Yes ☐ No ☐

If 'yes', please provide full details: _____

3.2 Is any committee member of the Body Corporate aware, after enquiry, of any circumstances or incident which he/she believes might give rise to a future claim that may fall under a Body Corporate Officers (or similar) policy? Yes ☐ No ☐

If 'yes', please provide full details: _____

3.3 Has there been or is there now pending, any complaint, claim, prosecution or inquiry of any kind in relation to the Body Corporate? Yes ☐ No ☐

If 'yes', please provide full details: _____

3.4 Does the Body Corporate have any current dispute with any member? Yes ☐ No ☐

If 'yes', please provide full details: _____

4. Insurance details

4.1 Has any committee member of the Body Corporate ever been refused this type of insurance, or had a similar insurance cancelled or declined to renew, or had any special terms imposed? Yes ☐ No ☐

If 'yes', please provide full details: _____

4.2 (a) If the Body Corporate is currently insured, list details of existing insurer: _____

(b) Current limit of indemnity: \$ _____

(c) Annual Premium (including GST): \$ _____

(d) Period of Insurance: From: _____ To: _____

4.3 Limit of indemnity required: \$ _____

4.4 Excess: \$ _____

5. Declaration

I/We hereby declare that:

- (a) All information provided, in this application and any attachments, is true and complete in every respect and that no material facts remain undisclosed.
- (b) I/We understand that NZI requires this information in order to evaluate this application and that the Privacy Act 2020 entitles me/us to have access to, and request the correction of, any information retained.
- (c) NZI is authorised to disclose information to its advisers, reinsurers, other insurers and parties with a financial interest in the subject matter of this application.
- (d) NZI is authorised to check details against the Insurance Claims Register and to place information on the Insurance Claims Register which other insurers can access.
- (e) NZI is authorised to obtain from other parties any information which may be relevant to the acceptance of this risk.
- (f) The signing of this application does not bind either party to complete the contract and that no cover will be in force until confirmed by NZI. The statements set forth herein are true and that I have provided all material facts.

Name: _____ Signature: _____

Title: _____ Date: _____

It is important the signatory/signatories to this application is/are fully aware of the scope of this insurance so that all questions can be answered. If you are not sure whether you need to tell us about something, please contact your insurance broker as non-disclosure may affect the outcome of any claim or lead to the policy being voided.